

7. As soon as the deed of security for a loan shall be completed the amount of the loan shall be placed by Queen Anne's Bounty to the credit of an account in their books to be entitled "Loan Account No. 1 (*2 or 3 as the case may be*) of the benefice of ". The money standing to the credit of the said account shall be paid by Queen Anne's Bounty for or towards the objects for which the loan was made, or Queen Anne's Bounty may, on the request of the Ecclesiastical Commissioners, transfer the same money or any part thereof to the Ecclesiastical Commissioners to be by them paid for or towards those objects. Queen Anne's Bounty or the Ecclesiastical Commissioners (as the case may be) may for the purpose of paying the same money accept such certificates, statement of account, or vouchers as they may respectively think proper.

8. Any surplus standing to the credit of the loan account of a benefice under this Act may be applied by Queen Anne's Bounty in payment for extras arising in the execution of the works for which the loan was made, but, subject to any such payment thereout, the surplus shall be applied in reduction of the principal debt.

CHAPTER 43.

An Act to amend the Midwives Act, 1902.

[21st November 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

CENTRAL MIDWIVES BOARD.

Future revision of constitution of Central Midwives Board.

1.—(1) The Central Midwives Board may at any time represent to the Privy Council that it is expedient to modify the constitution of the Board either by—

- (a) increasing or diminishing the number of persons appointed by any body or person ; or
- (b) abolishing the power of appointment by any body or person ; or
- (c) conferring on any body or person a power of appointment of one or more persons ; or
- (d) altering the term of office or qualifications of any members.

(2) The Privy Council before considering such representation shall cause it to be laid before both Houses of Parliament.

(3) If either House of Parliament within forty days (exclusive of any period of adjournment for more than one week) next after such representation has been laid before the House presents an address to His Majesty declaring that the representation or any part thereof ought not to be given effect to, no further proceedings shall be taken in respect of the representation in regard to which the address has been presented ; but, if no such address is presented by either House within such forty days as aforesaid, the Privy Council may, if they think fit, report to His

Majesty that it is expedient to give effect to the representation ; and it shall be lawful for His Majesty by Order in Council to give effect to the same, and any Order in Council so made shall have effect as if enacted in this Act.

2. The approval by the Privy Council of any balance against the Central Midwives Board shown in any financial statement made under section five of the Midwives Act, 1902, in this Act referred to as the principal Act, shall be, and shall be deemed always to have been, binding and conclusive as to the amount of the balance to be apportioned under that section, and any apportionment of any such balance between the several counties and county boroughs under that section shall be in proportion to the population of those counties and county boroughs according to the returns of the last published census for the time being, instead of in the proportion mentioned in the said section.

Amendment of section five of the principal Act with respect to finance.
2 Edw. 7. c. 17.

3. The following paragraph shall be added to section seven of the principal Act :—

“A certificate purporting to be signed by the Secretary of the Board that the name of a woman whose name appears in the roll of midwives has been removed from the roll and of the date of such removal shall be evidence that such woman is not certified under this Act and of the date as from which she ceased to be so certified.”

Amendment of section seven of the principal Act as to evidence.

4. The Central Midwives Board shall pay to the members of the Board in respect of their attendance at meetings of the Board reasonable expenses on a scale approved by the Privy Council, and such payment shall be treated as part of the general expenses of the Board.

Payment of expenses of members.

5. The Central Midwives Board shall make to the Privy Council an annual report of their proceedings, containing such particulars as the Privy Council may direct.

Annual report.

PROVISIONS AS TO MIDWIVES.

6.—(1) The power of the Central Midwives Board to frame rules deciding the conditions under which midwives may be suspended from practice shall include a power of framing rules—

Provisions as to suspension.

- (a) authorising the Board to suspend a midwife from practice for such period as the Board think fit, in lieu of striking her name off the roll, and to suspend from practice until the case has been decided, and (in the case of an appeal) until the appeal has been decided, any midwife accused before the Board of disobeying rules or regulations or of other misconduct ;
- (b) authorising the local supervising authority which takes proceedings against a midwife before a court of justice or reports a case for consideration by the Central Midwives Board to suspend her from practice until the case has been decided.

(2) Where in pursuance of any power conferred by any such rule a midwife has been suspended from practice pending the decision of her case by a court or the Board and the case is decided in her favour, or where in pursuance of the duty imposed by paragraph (3) of section eight of the principal Act a midwife has been suspended from practice in order to prevent the spread of infection, the Central Midwives Board, or the local supervising authority by whom she was suspended, may, if they think fit, pay her such reasonable compensation for loss of practice as under the circumstances may seem just.

Expenses of
midwives.

7.—(1) The Central Midwives Board may, if they think fit, pay all or any part of the expenses incurred by any midwife who may be required to appear before them in her own defence, and all forms required to be filled up and returned to the Board shall be supplied gratis by the Board to certified midwives.

(2) All other forms and books which certified midwives are required to fill up or use shall be supplied to them gratis by the local supervising authority.

(3) Where any such form is required to be returned by post to the Board or the authority, either the form shall be supplied duly stamped, or a duly stamped envelope shall be supplied with the form.

Offences by
midwives.

8.—(1) Where the Central Midwives Board decide upon the removal from the roll of the name of any midwife, they may, in addition, prohibit her from attending women in child-birth in any other capacity, but such decision of the Board shall be subject to the like appeal as their decision to remove her name from the roll, and, if any woman so prohibited acts in contravention of the prohibition, she shall be liable on summary conviction to a fine not exceeding ten pounds, unless she proves that she acted in a case of emergency.

(2) Any woman whose name is ordered to be removed from the roll for disobeying rules or regulations, or for other misconduct, shall, within fourteen days from the making of the order, surrender her certificate to the Central Midwives Board, and, if she fails to do so, shall be liable on summary conviction to a fine not exceeding five pounds.

Notification
of change of
address.

9. Where a woman certified under the principal Act has given a notice in compliance with section ten of that Act and subsequently changes her address, she shall, within seven days after such change, give notice of the change to every local supervising authority to which she had previously given notice under that section, and, if she omits to do so, shall, on summary conviction, be liable to a fine not exceeding two pounds.

Reciprocal
treatment of
midwives
certified in
other parts of
His Majesty's
dominions.

10.—(1) Any woman who produces to the Central Midwives Board satisfactory evidence that she has been trained as a midwife and certified in any other part of His Majesty's dominions in which there is for the time being in force any Act or ordinance for the certification and registration of midwives under

a public authority and which admits to its register midwives certified under the principal Act on reciprocal terms, shall, on payment of the like fee as is payable in ordinary cases, be entitled to be certified under the principal Act: Provided that the standard of training and examination required in such other part of His Majesty's dominions is equivalent to the standard adopted by the Board.

(2) If any question arises under this section as to the right of a woman to be certified under the principal Act the question shall be determined by the Privy Council.

PROVISIONS AS TO LOCAL SUPERVISING AUTHORITIES.

11. A local supervising authority may aid the training of midwives, whether within or without their area, and may make grants for the purpose.

Power of local supervising authorities to contribute to training of midwives.

12. Section nine of the principal Act (which enables county councils to delegate their powers and duties to district councils) shall be repealed: Provided that where at the commencement of this Act any powers or duties have been delegated such delegation shall not be affected unless on the representation of the county council concerned the Local Government Board otherwise direct.

Repeal of section nine of the principal Act.

13. Where the name of a woman has been removed from the roll of midwives the Central Midwives Board shall forthwith give notice of the fact to all local supervising authorities concerned.

Notification to local supervising authorities of removal of names from roll.

14.—(1) In case of any emergency, as defined in the rules framed under section three I. (e) of the principal Act, a midwife shall call in to her assistance a registered medical practitioner, and the local supervising authority shall pay to such medical practitioner a sufficient fee, with due allowance for mileage, according to a scale to be fixed by the Local Government Board.

Medical assistance in case of emergency.

(2) It shall be a condition of the payment of such fee that the medical practitioner so called in shall state in his claim to the local supervising authority the nature of the emergency.

(3) The midwife shall report forthwith to the local supervising authority each case of emergency in which she has called in a registered medical practitioner to her assistance, stating the nature of the emergency and the name of the medical practitioner.

(4) The local supervising authority shall have power to recover the fee from the patient or from the husband or other person liable to maintain the patient either summarily or otherwise as a civil debt, unless it be shown to their satisfaction that the patient or her husband or such other person is unable by reason of poverty to pay such fee.

GENERAL.

Action by
General Medi-
cal Council.

15. The General Medical Council may, for the purposes of section three of the principal Act, act through their Executive Committee instead of through the English Branch Council.

Short title,
construction,
commence-
ment, and
repeal.

16.—(1) This Act may be cited as the Midwives Act, 1918, and shall be construed with the principal Act; and that Act and this Act may be cited together as the Midwives Acts, 1902 and 1918.

(2) This Act shall come into operation on the first day of January nineteen hundred and nineteen.

(3) The provisions of the principal Act specified in the Schedule to this Act are hereby repealed.

SCHEDULE.

Section 16.

PROVISIONS OF PRINCIPAL ACT REPEALED.

In section 5 the words “in proportion to the number of midwives who have given notice during the year of their intention to practise in those areas respectively.”

Section 9 the whole section.

In section 10 the words “or to the body to whom for the time being the powers and duties of the local supervising authority shall have been delegated under this Act,” and the words “or delegated body.”

Section 17 from “The General Medical Council” to the end of the section.

CHAPTER 44.

An Act to constitute a Special Commission to inquire into certain complaints as to the Treatment of Prisoners in Belfast Prison. [21st November 1918.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Appoint-
ment
of Commis-
sioner.

1.—(1) The Right Honourable William Huston Dodd, one of the Judges of the King’s Bench Division of His Majesty’s High Court of Justice in Ireland, is hereby appointed Commissioner for the purpose of inquiring into, and reporting upon, such complaints as to the treatment of prisoners in Belfast Prison in the months of June and July, nineteen hundred and eighteen, as may be presented to the Commissioner in accordance with the procedure which he may prescribe.

(2) In the event of the said Right Honourable William Huston Dodd dying before the completion of the report or being unable through illness or other sufficient cause to enter upon or to complete the inquiry and report, the Lord Chancellor of